



TWELVE-MONTH PROGRESS REPORT

Kenya: progress report, 2025-08-01 to 2026-08-05

Edition of 2026-08-13 · 169 systems and instruments tracked, 6 of them not held

Compiled 2026-08-10 from the Data Landscapers source base. Sections follow the status report. Each opens with a movement ledger comparing the position at the start and end of the period, which runs to the date of issue rather than to the last month's close.

Of 169 systems and instruments on this place's ledger, 83 changed position between 2025-08-01 and 2026-08-05, 24 did not, 51 carry no stated baseline, and 6 are **Not held** at both ends. A further 5 took a position dated after 2026-08-05 and are carried in the status report rather than compared here.

Shape check, run before the comparison: 443 sources for this place in the window — 71 in the earlier half (2025-08 to 2026-01), 372 in the later (2026-02 to 2026-08). The earlier half of the window is thin: this is a shorter comparison wearing a longer label, and the movement below rests mostly on the later half.

Movement values. *Advanced* — a system entered service, a stage was completed or an instrument was made. *Stalled* — a stated target passed without delivery. *Regressed* — an instrument was withdrawn or neutralised, or a measured position worsened. *Closed* — the programme ended. *No change* — the position at both ends is the same. *Baseline not held* — the base carries no position at the start of the period, so no movement can be stated. A value may carry a qualifying clause after a comma, as in *Advanced, slipped*.

Summary of the period

Over the twelve months, Kenya's regulatory layer went from empty to fully drafted in two areas that had no instrument at all — artificial intelligence and virtual assets — while the state's own digital spending fell for a second consecutive year. The shape check above records how uneven the base is; the comparison rests mostly on its later half, and rows whose only source is recent but which describe long-standing systems carry their position from earlier rather than as movement.

Infrastructure

Connectivity

SYSTEM OR INSTRUMENT	AT 2025-08-01	AT 2026-08-05	MOVEMENT
Communications Equipment Distributor licence	Did not exist	Mandatory before equipment type approval and TradeNet clearance; KSh 1m or three years for non-compliance	ADVANCED

SYSTEM OR INSTRUMENT	AT 2025-08-01	AT 2026-08-05	MOVEMENT
LINX Nairobi internet exchange	Operating; peer count not held and combined traffic one-twentieth of current	55-plus connected networks including TikTok and Starlink; combined Nairobi and Mombasa exchange traffic 330 Gbps, twentyfold in a year	ADVANCED
Safaricom 25-year unified licence	Temporary two-year unified permit, historic term ten years	25-year unified licence consolidating spectrum and authorisations; licence-related costs about US\$126.7m in the year to March 2026	ADVANCED
Starlink Direct-to-Cell with Airtel Kenya	No direct satellite-to-handset service in Kenya	Pilot reported successful; would be Kenya's first direct-to-cell service on compatible handsets with no extra SIM or charge, conditional on CA approval	ADVANCED
Starlink Kenya fixed broadband	17,425 subscribers and 0.8% fixed share, 359 net adds Apr-Jun 2025	24,999 subscribers and 0.9% share, top-ten fixed ISP (Mar 2026); median speed 34.55 Mbps, down 26% year on year; orders in seven counties diverted to a deposit-backed waitlist	ADVANCED, THEN CAPPED
Africa-1 subsea cable	BASELINE NOT HELD	10,000km France to Middle East system routed through Africa, which TeleGeography expects to land in Kenya in 2027, taking Kenya from seven landings to nine	Baseline not held
Digital Superhighway fibre and hotspot targets	BASELINE NOT HELD	100,000km of fibre and 25,000 public Wi-Fi hotspots targeted; the regulator reports 2,193km deployed under phase one and 1,173 last-mile sites connected under phase two at 30 June 2025; FY2026/27 carries KSh 1.3bn for backbone maintenance and KSh 528m for last-mile county connectivity	Baseline not held
Kenya-Tanzania Terrestrial Fibre Link	BASELINE NOT HELD	Cross-border link integrating Tanzania's NICTBB with the Mombasa submarine landings, delivered by the ICT Authority with Tanzania Telecommunications Corporation	Baseline not held
Meta Daraja subsea cable	BASELINE NOT HELD	4,108km, 24 fibre pairs, Salalah to Mombasa, US\$23m, ready for service 2026	Baseline not held

Data Storage

SYSTEM OR INSTRUMENT	AT 2025-08-01	AT 2026-08-05	MOVEMENT
Airtel Nxtra data centre, Tatu City	Announced 44MW at Tatu City, ground not yet broken	44MW in two phases, US\$150m, dedicated 135 MVA substation in the Tatu City special economic zone with on-site solar	ADVANCED, SLIPPED
Baobab Cloud sovereign public cloud	Did not exist	Shilling billing, zero egress, 99.9% service level and in-country data residency, hosted at iXAfrica NBOX1	ADVANCED
iXAfrica NBOX1 campus	Operating, 17,300 square metres, expansion unfinanced	22.5MW target capacity; anchor site for the Oracle Nairobi region, TouchNet, Servernah, Baobab and the Qubit Hub AI lab, with 11 acres bought for a second Nairobi campus	ADVANCED
Konza National Data Centre	KSh 3.1bn appropriated for Konza data centre and smart city in FY2025/26, down from KSh 5.2bn in FY2024/25	706 kW certified IT capacity against an actual load of about 300 kW, 144 racks with 100 in use, Tier III Design and Construction certified and hosting 145 of 451 government institutions (2026-04-13); expansion to 288 racks and 1 to 2 MW being structured as a public-private partnership, with no Konza data-centre allocation disclosed at FY2026/27 budget day	REGRESSED, EXPANSION MOVED TO A PPP ROUTE
Microsoft-G42 Olkaria data centre	US\$1bn, 100MW initial geothermal build targeting a May 2026 launch with an East Africa cloud region	No ground broken and the May 2026 target passed; Microsoft and G42 asked Kenya to guarantee annual uptake of capacity, including by neighbouring countries, and the government declined, while the ICT principal secretary said on 2026-05-12 that the talks had not collapsed and the project was "not failed or withdrawn"	STALLED
Oracle Cloud Infrastructure Nairobi region	Announced January 2024, no colocation partner, site or date named	iXAfrica NBOX1 confirmed as host, more than 20MW IT capacity when fully built and up to 50 kW per rack; still listed as coming soon	ADVANCED

SYSTEM OR INSTRUMENT	AT 2025-08-01	AT 2026-08-05	MOVEMENT
TouchNet Zadara AI Sovereign Cloud	GPU-as-a-service sovereign AI cloud at iXAfrica NBOX1	Unchanged; nothing held records capacity, customers or expansion since launch	NO CHANGE
Olkaria EcoCloud data centre	BASELINE NOT HELD	Broke ground 2023-09-01 on a 60MW masterplan across three campuses; rescoped 2024-03-08 to a 100MW first phase with a stated potential to 1GW; no later position held	Baseline not held

Energy

SYSTEM OR INSTRUMENT	AT 2025-08-01	AT 2026-08-05	MOVEMENT
Grid capacity against data-centre demand	BASELINE NOT HELD	About 3GW installed supply against a 10GW-by-2030 target; a single 1GW data centre would take a third of supply	Baseline not held

Technical Capacity

SYSTEM OR INSTRUMENT	AT 2025-08-01	AT 2026-08-05	MOVEMENT
Kenya Advanced Institute of Science and Technology	KSh 2.3bn appropriated in FY2025/26 for continued construction at Konza	Charter issued and operationalisation under review with Korea Exim Bank; no FY2026/27 allocation disclosed and no commitment amount stated	STALLED
Broadcast Logger and CA Broadcast Monitoring Room	BASELINE NOT HELD	Nationwide deployment complete with a Broadcast Monitoring Room at the CA Centre	Baseline not held

Cybersecurity

SYSTEM OR INSTRUMENT	AT 2025-08-01	AT 2026-08-05	MOVEMENT
Cyber Space Management appropriation, Vote 1122	No separately visible cyber appropriation	KSh 457.2m for Cyber Space Management appropriated in the original FY2026/27 estimates, plus KSh 382m for digital superhighway cybersecurity	ADVANCED
Kenya Cyber Resilience Project	Did not exist	EUR 3m over 36 months, EU-funded, implemented by Expertise France with ESTDEV, hardening critical information infrastructure	ADVANCED
National Cyber Security Agency	Did not exist; cyber duties split across KE-CIRT/CC, NC4, law enforcement and sector regulators	Autonomous state corporation under the Interior Cabinet Secretary; mandate covers critical-infrastructure audit and certification, a National Cyber Security Operations Centre and incident coordination, at about KSh 4bn establishment cost	ADVANCED
president.go.ke	No compromise on record	Second defacement inside twelve months, with a 5 BTC ransom demand; State House says no evidence of data access, and cause, access vector and attribution are undisclosed	REGRESSED

Three positions changed maturity band. Cyber-security acquired an institution: the National Cyber Security Agency Order was gazetted in May 2026 and announced approved in June, at a tabled establishment cost of about KSh 4bn, where cyber duties had previously been split across the regulator's incident team, a counter-terrorism centre, law enforcement and sector regulators. Satellite broadband flipped from decline to capacity exhaustion — from 17,425 subscribers and a shrinking share in mid-2025 to 24,999 and top-ten fixed status by March 2026, then closed sign-ups in seven counties and speeds down 26%. And the hyperscale anchor moved from build to stall, with the Olkaria facility missing its May 2026 launch and power established on the record as the constraint that stopped it.

Against that, the operational record moved the other way. The presidency's website went from no compromise on file to two defacements in twelve months, cause undisclosed both times. The Computer Misuse and Cybercrimes Act lost provisions to the courts rather than gaining reach. And the Konza data centre's appropriation disappeared from the estimates without explanation, having already fallen from KSh 5.2bn to KSh 3.1bn the year before.

Everything else accreted detail: a cloud region confirmed its host but has no launch date, a data centre broke ground then slipped six months, and the 100,000km fibre target was restated without a delivered-kilometre figure.

Digital public infrastructure

Data Exchange

SYSTEM OR INSTRUMENT	AT 2025-08-01	AT 2026-08-05	MOVEMENT
Advanced Cargo Declaration system	Did not exist	In service, moving document lodgement and verification to before loading at the port of export; more than 1,000 applications in the first five days	ADVANCED
Smart Gate, Port of Mombasa	Did not exist	Piloting at one gate, integrating the Integrated Customs Management System with the systems of other government agencies; no cost, vendor, timetable or evaluation criterion published	ADVANCED
Digital Health (Data Exchange Component) Regulations 2025	In force from 2025-04-11	In force, designating the shared resources of the national health data exchange — the national health data dictionary, client registry, facility registry, health worker registry, the Kenya Health Enterprise Architecture and the national logistics management information system — as critical information infrastructure, and making onboarding and access to those registries fee-bearing; the Health Cabinet Secretary stated on 2026-08-04 that the charge is 2% of each transaction capped at KSh 5,000, payable to the Digital Health Agency	NO CHANGE
KNPHI enterprise system interoperability baseline	BASELINE NOT HELD	IFMIS, central bank interfaces, tax, health insurance, pensions, government payroll, laboratory systems and identity management all made day-one mandatory interfaces, with primary hosting required in an approved Kenyan government or health-sector environment	Baseline not held
Pesalink and PAPSS interlink	BASELINE NOT HELD	Links more than 80 Kenyan institutions to PAPSS, the first PAPSS national-switch pilot	Baseline not held

Digital Identity and CRVS

SYSTEM OR INSTRUMENT	AT 2025-08-01	AT 2026-08-05	MOVEMENT
Automatic identity at 18 from the civil register	Reform direction announced, with vetting shifted to birth registration	Statute mandates a civil-registration office in each of 290 sub-counties, with the unique personal identifier issued at birth feeding automatic identity at 18	ADVANCED
Maisha Namba national digital ID	KSh 15.13bn committed FY2024/25 for 7.5m cards and unique personal identifier rollout; first-time-ID fees scrapped March 2025	More than 42m identity records digitised in FY2025/26, with enrolment extended to dependants aged 7 to 17	ADVANCED

SYSTEM OR INSTRUMENT	AT 2025-08-01	AT 2026-08-05	MOVEMENT
Phone number as personal digital identifier	Not recognised in law	Registered phone number recognised as a personal digital identifier, recycling of dormant numbers without consent barred, and the Attorney-General given six months to legislate	ADVANCED
Vote 1024 Population Management Services appropriation	KSh 8,085.6m appropriated in the FY2025/26 original estimates, KSh 11,074.0m at the first supplementary	KSh 10,993.0m appropriated for FY2026/27, holding near the supplementary peak	ADVANCED
Compulsory digital seller identifier	Proposed by the trade ministry for e-commerce sellers	Still a proposal, nothing on record being built	NO CHANGE
Civil register link to police facial recognition	BASELINE NOT HELD	Civil-registry database to be linked to a six-city CCTV and facial-recognition network	Baseline not held
Digital birth-notification system	BASELINE NOT HELD	Hospital-to-registry notification linked to Maisha Namba, Nairobi County only	Baseline not held
IEBC iris capture on voter-registration kits	BASELINE NOT HELD	Optional iris capture added to voter-registration kits as part of a roughly KSh 7bn upgrade	Baseline not held
New identity and passport issuance system	BASELINE NOT HELD	Government procuring a system to cut identity-card issuance to ten days and passports to a week	Baseline not held
Verifiable-credential wallet, Public Service Commission	BASELINE NOT HELD	Proof of concept completed after an audit found over 2,000 fake certificates; no single credential database	Baseline not held

Digital Payments and Fintech

SYSTEM OR INSTRUMENT	AT 2025-08-01	AT 2026-08-05	MOVEMENT
Airtel Money Bizna Wallet	Did not exist	Dedicated business wallet, free to fund, with half of transaction fees returned as in-wallet cashback, on a 10.9% mobile-money share	ADVANCED
Hustler Fund repayment through Bonga Points	Did not exist	Five loyalty points settle one shilling — a privately issued loyalty balance converting into public-money recovery at a rate the issuer sets	ADVANCED
M-PESA	35.82m 30-day-active Kenyan customers at 31 March 2025, KES 161.1bn revenue, share slipping from about 98%	40.99m 30-day-active Kenyan customers at 31 March 2026, KES 182.7bn revenue, KES 41.68tn transacted and 89.1% market share	ADVANCED
M-PESA phone-number masking	Masking limited to Pochi la Biashara	Live on person-to-person transfers, with extension to merchant payments and bank transfers targeted for end-2026	ADVANCED
My OneApp	Did not exist; M-PESA and mySafaricom were separate apps	Single front door to the payments rail, with the standalone apps to be decommissioned six months after launch	ADVANCED
Registered mobile-money accounts and agents	87.46m registered accounts and 451,157 active agents, August 2025	94.09m registered accounts and 564,330 active agents, May 2026, with agent cash movement of KSh 681.45bn in the month	ADVANCED
CBK national switch and fast payment system	BASELINE NOT HELD	Central bank designing a fast payment system and national switch amid heavy lobbying, with no award	Baseline not held

Registries (population, land, address, etc.)

SYSTEM OR INSTRUMENT	AT 2025-08-01	AT 2026-08-05	MOVEMENT
Online download of birth certificates	Application online through eCitizen, collection required a visit to a registry or Huduma centre	Certificate downloadable and printable online after application	ADVANCED
Ardisasa land platform	Isiolo live, Mombasa Island blocks the prior week, Marsabit and Baringo named next	No county-rollout update on file since July 2025; the EU has earmarked EUR 12m for land-registration digitisation tied to the digital identity	NO CHANGE

Sectoral management information systems (HMIS, EMIS, etc.)

SYSTEM OR INSTRUMENT	AT 2025-08-01	AT 2026-08-05	MOVEMENT
Biometric Health Identification	Launched at Kenyatta University hospital 2025-08-04 with 29 biometric devices, operational in all level 4 to 6 public facilities	Extended to biometric enrolment of dependants aged 7 to 17, each issued a Maisha Namba linked to their health record	ADVANCED
Kenya Education Management Information System	Pilot due July 2025 and full go-live promised by September 2025, with a unique identifier for every child	No confirmation of go-live, coverage or learner count on file as at 2026-08-05	STALLED
Social Health Authority claims platform	Operational from October 2024; the Auditor-General found the KSh 104.9bn procurement unbudgeted and non-competitive, with intellectual property ceded to the consortium	Members turned away and billed in cash when authorisation fails, with the Authority saying the Digital Health Agency runs the system on its behalf	REGRESSED
Digital Health Act 2023 and Digital Health Agency	Binding statute in force establishing the Agency and an integrated digital health information system	Same, with the 2025 regulations added, challenged in the High Court for inadequate public participation and operating under a Court of Appeal stay	NO CHANGE
TaifaCare health management information system	BASELINE NOT HELD	Deployed in 1,500 public health facilities, against commitments of 2,000 by 2026, 4,000 by 2027 and 8,000 by 2028	Baseline not held

Other GovTech and e-Gov

SYSTEM OR INSTRUMENT	AT 2025-08-01	AT 2026-08-05	MOVEMENT
eCitizen daily collections	Under KSh 60m a day in the manual era, 2022	KSh 600m a day	ADVANCED
eCitizen platform	More than 20,000 e-services on the platform	More than 22,000 services from over 100 agencies, with an expansion programme to 25,000 under way	ADVANCED
eCitizen service-migration target	3,458 of 11,000 services onboarded in FY2024/25	1,695 of 11,000 onboarded to 31 March 2026, called a dismal performance; the 2023 Executive Order remains unmet	REGRESSED
Kenya DPI Roadmap	Under development on five pillars, launched at the inaugural inter-ministerial steering committee	No roadmap document, timetable or cost published; GIZ's Digital Transformation Centre Kenya has funded a work package inside the EU-EAC DEEP service contract to develop a bankable Kenyan DPI project	ADVANCED, AT PROCUREMENT STAGE

SYSTEM OR INSTRUMENT	AT 2025-08-01	AT 2026-08-05	MOVEMENT
Public Finance Management (e-Citizen) Regulations 2026	Did not exist; a flat KSh 50 convenience fee was levied without regulations	Draft before the public, replacing the flat fee with a value-pegged one after the High Court declared the KSh 50 illegal in late 2025	ADVANCED
Vote 1024 e-Citizen Services appropriation	KSh 3,897.5m appropriated in the FY2025/26 original estimates, rising to KSh 5,585.9m at the first supplementary	KSh 3,612.6m appropriated for FY2026/27, the line's first decline after two years of growth	REGRESSED
e-Government Procurement system	KSh 2,270m held through the FY2024/25 first supplementary, go-live scheduled July 2025	No post-go-live status, transaction volume or coverage figure on file	NO CHANGE
eCitizen operating consortium	MPs seeking cancellation, the Attorney-General's signature missing from the contract, special audit not concluded	Contract still running; the Auditor-General alleges KSh 9.4bn irregularly funnelled to private entities and flags vendor dependency as a single point of failure	NO CHANGE
National Police Service Information Management System	Design presented, consolidating fragmented police systems with role-based access and digital chain of custody	No build, procurement or go-live status on file thirteen months later	NO CHANGE
Diaspora information management portal	BASELINE NOT HELD	Live on eCitizen for diaspora registration, missing-person and death reporting, crisis mapping and a 24-hour response centre	Baseline not held
Kenya Ports Authority digitalisation	BASELINE NOT HELD	Bilateral commitment to technology transfer and digital solutions for Mombasa; no instrument, value or timetable	Baseline not held

Digitalisation of sub-national government

SYSTEM OR INSTRUMENT	AT 2025-08-01	AT 2026-08-05	MOVEMENT
County digital services register	None published	All 47 counties scored out of 100 on citizen experience, revenue and back-office systems, data use and employment creation, from 98.3 for Murang'a to 28.8 for Wajir, with seven counties at Grade A and six at Grade D	ADVANCED
Kirinyaga One Government Network fibre	BASELINE NOT HELD	102.4km of fibre connecting all five sub-counties, with nine public Wi-Fi hotspots live and 80 further sites surveyed	Baseline not held
Murang'a telemedicine network	BASELINE NOT HELD	170 public health facilities live and 302 more due before end-2026, with 15 doctors at a central hub handling 450 to 600 patients a day, from a 35-facility pilot at end-2025	Baseline not held

National statistics

SYSTEM OR INSTRUMENT	AT 2025-08-01	AT 2026-08-05	MOVEMENT
KNBS digital-indicator release	Economic Survey 2025, ICT chapter running to 2024	Unchanged; the ICT chapter puts mobile subscriptions at 71.4m and 136.1 per 100 inhabitants in 2024, fixed and wireless internet subscriptions at 57.8m and mobile-money subscriptions at 42.3m, and no 2026 edition or Statistical Abstract is held	NO CHANGE
Safaricom and KNBS mobile-data partnership	BASELINE NOT HELD	Collaboration to explore anonymised aggregated mobile data for population, mobility and socio-economic insight, with no scope, governance terms or start date	Baseline not held

The identity and payments layers grew without changing band. Registered mobile-money accounts rose from 87.46 million to 94.09 million and active agents from 451,157 to 564,330; the dominant wallet went from 35.82 million to 40.99 million 30-day-active customers and moved KES 41.68tn in the year to March 2026. Identity records digitised passed 42 million. These are bigger numbers on the same systems.

What genuinely moved is legal and fiscal. A High Court ruling in March 2026 recognised a registered phone number as a personal digital identifier and barred recycling dormant numbers without consent, where no such recognition existed before; the civil-registration statute mandating an office in each of 290 sub-counties was assented; and birth certificates became downloadable online where collection had required a visit.

Two rows regressed. Service migration onto the government platform halved against an unchanged 11,000-a-year target, from 3,458 to 1,695. And the platform's own appropriation fell for the first time after two years of growth, from KSh 3,897.5m in the 2025/26 original estimates to KSh 3,612.6m for 2026/27, while the identity line rose to KSh 10,993.0m.

Two systems stalled against their own stated dates: an education management information system promised a July 2025 pilot and a September 2025 go-live and has confirmed neither, and a police information system presented in July 2025 has no build or go-live status thirteen months later.

Governance and regulation

Legislation and regulation

SYSTEM OR INSTRUMENT	AT 2025-08-01	AT 2026-08-05	MOVEMENT
Access to Information (Amendment) Bill	Did not exist	Would criminalise sharing classified information through personal messaging or email, on four classification tiers	ADVANCED
AI Governance Act	Did not exist	Named in the draft policy as the statutory backstop, with no text, sponsor or date	ADVANCED
Computer Misuse and Cybercrimes Act 2018	In force with false-publication offences and a non-judicial website-shutdown power	Narrowed by litigation, with the false-publication sections and the shutdown power struck and a conservatory order blocking a national internet shutdown	REGRESSED
Copyright and Related Rights Bill 2026	Did not exist	Out for comment, creating a Copyright Authority and a disputes tribunal, and carrying the 2001 computer-generated-work authorship rule forward unchanged	ADVANCED
Kenya National Library Service Bill 2023	Published 2023-06-14 to repeal the Kenya National Library Service Act 1965, with no digital provision on record	At Senate committee hearing, with the ICT ministry asking that electronic legal deposit, a national digital knowledge repository, digital preservation of public records, AI-supported cataloguing and interoperability with government digital infrastructure be written into the Bill	ADVANCED
Sexual Offences Act amendment package	Did not exist	Pre-parliamentary proposals on sextortion, stalking, voyeurism and AI-generated or altered intimate imagery, with an institutional duty to report	ADVANCED
Technopolis Act	Did not exist	In force, giving innovation cities including Konza a standalone legal framework with a development authority and a disputes tribunal	ADVANCED
Technopolis Regulations	Did not exist	Not finalised, with no draft on file	ADVANCED
Virtual Asset Service Providers Act 2025	Did not exist	In force, with pre-existing operators given until 2026-11-04 to comply	ADVANCED

SYSTEM OR INSTRUMENT	AT 2025-08-01	AT 2026-08-05	MOVEMENT
ICT Authority Bill	BASELINE NOT HELD	On the forward legislative list with no text, sponsor or stage on file	<i>Baseline not held</i>
Kenya Intellectual Property Bill	BASELINE NOT HELD	Would merge three agencies into a new authority with an intellectual-property tribunal	<i>Baseline not held</i>
Persons with Disabilities Act 2025	BASELINE NOT HELD	In force but setting no AI accessibility standards and no enforcement mechanism	<i>Baseline not held</i>

Strategies, plans and policies

SYSTEM OR INSTRUMENT	AT 2025-08-01	AT 2026-08-05	MOVEMENT
Draft National Data Governance Policy	Did not exist	Draft of May 2026 schedules implementation from July 2026, with the personal and non-personal boundary undefined and the pricing method deferred	ADVANCED
Inter-Agency Digital Piracy Enforcement Framework	Did not exist	Adopted, with the ICT ministry coordinating the copyright board, the regulator, the Media Council and the Copyright Tribunal	ADVANCED
Joint Framework for Digital Platform Governance	Did not exist	In drafting, would replace safe-harbour immunity with earned protection and add a joint regulatory oversight committee	ADVANCED
National Policy on Digital Piracy	Did not exist	Announced, to be drafted multi-stakeholder, with no draft, drafter or date	ADVANCED
Central bank pricing principles for mobile money	BASELINE NOT HELD	Operating through voluntary operator alignment, with no gazetted tariff rule or determination to cite, appeal or extend to a competitor	<i>Baseline not held</i>
Harmonised county wayleave framework	BASELINE NOT HELD	Agreed to be developed and tabled at the intergovernmental sector forum, with no framework text, timetable, cost or wayleave figure published	<i>Baseline not held</i>
National BPO Policy	BASELINE NOT HELD	Claimed as delivered, with no text, adoption date or provisions on file	<i>Baseline not held</i>
National Cloud Policy	BASELINE NOT HELD	Adopted, cited as anchoring domestic data-centre demand	<i>Baseline not held</i>
National Cybersecurity Policy	BASELINE NOT HELD	On the government's forward list with nothing drafted on record	<i>Baseline not held</i>

Standards

SYSTEM OR INSTRUMENT	AT 2025-08-01	AT 2026-08-05	MOVEMENT
Communications Equipment Vendor Class Licence guidelines	Did not exist	In force, with a 12-month minimum warranty, returns, after-sales support and record-keeping duties	ADVANCED
ODPC quality management system	Did not exist	Quality management system launched with World Bank support, with the external certification audit still to come	ADVANCED
ODPC draft guidance notes on biometric and children's data	Issued in draft, with mandatory registration of biometric processors and risk-based age assurance	Still in draft as far as the base establishes	NO CHANGE
EU Global Gateway ICT standards engagement	BASELINE NOT HELD	Cooperation reaffirmed across AI, cybersecurity, digital identity, interoperability and digital governance	<i>Baseline not held</i>

Data protection

SYSTEM OR INSTRUMENT	AT 2025-08-01	AT 2026-08-05	MOVEMENT
Communications Authority escalated consumer complaints	362 complaints in October to December 2025	670 escalated complaints in April to June 2026, up from 563 in the prior quarter, with 548 or 82% resolved; data services drew 195 complaints against 44 for voice, data billing and charges was the largest single category at 75, and the Authority separately logged 19 data-breach complaints	REGRESSED
Constitutional Petition E095 of 2026	Did not exist	Decided, awarding 11 petitioners KES 900,000 each for a sustained and systematic compromise of subscriber data	ADVANCED
Gambling regulator investigation into three licensed operators	Did not exist	Open, with the criminal investigations directorate requesting the regulator's entire record on the licensees back to 2018	ADVANCED
ODPC Data Protection Services appropriation	No separately visible appropriation	KSh 917.3m appropriated in the original estimates, projected to KSh 1,328m by 2028/29	ADVANCED
ODPC Guidance Note on Artificial Intelligence	Did not exist	36-page draft reading Part VI of the Data Protection Act onto AI, requiring a lawful transfer basis and a documented adequacy assessment before any transfer to an offshore AI processor, registration with the Office of every entity deploying AI on Kenyan data subjects' data, a data protection impact assessment before any high-risk deployment, and obligations mapped across a seven-stage AI lifecycle that applies to procured systems as to built ones	ADVANCED
ODPC Guidance Note on Emerging Technologies	Did not exist	31-page draft covering the internet of things, cloud, blockchain, biometric recognition classified as one-to-one, one-to-many and many-to-many, extended reality and connected vehicles	ADVANCED
ODPC Guidance Note on Privacy-Enhancing Technologies	Did not exist	38-page draft reading adoption of privacy-enhancing technologies as a statutory obligation under privacy by design	ADVANCED
US-Kenya Health Cooperation Framework	Did not exist	Signed 2025-12-04 for a five-year term, with US\$1,631,470,000 of planned United States support across FY2026-FY2030 including US\$175,000,000 for health data systems; frozen by injunction that month, the suspension of the data-transfer component reversed on appeal in May 2026, and a final ruling reported due at end-October 2026. The framework's US\$2.5bn headline value, used in press and litigation coverage, is this same US\$1,631,470,000 of planned US support plus Kenya's own pledged increase in domestic health expenditure (Framework paragraph 6.1.2, approximately US\$850m to FY2029/30 per the US Department of State's own announcement of the signing) – not a competing figure	ADVANCED
Data Protection Act 2019	In force, with the Office of the Data Protection Commissioner as statutory regulator	In force, with the regulator now stretching its cross-border-transfer duties to reach offshore AI processing	NO CHANGE
ODPC enforcement caseload and penalties	7,128 complaints received and 215 determinations issued as of March 2025	Same statement; no later caseload, determination count or penalty total published	NO CHANGE, NO LATER FIGURE PUBLISHED
ODPC five-year privacy plan	Launched at KES 12.6bn over five years	Launched, with no spend, milestone or progress statement on file since	NO CHANGE
Betting and gaming firms registered with the ODPC	BASELINE NOT HELD	15 of 224 fully registered as both controller and processor, with 185 unregistered and given 40 days or licence cancellation	Baseline not held
Cybercrime losses, regulator estimate	BASELINE NOT HELD	At least KSh 29bn a year	Baseline not held

Open data

SYSTEM OR INSTRUMENT	AT 2025-08-01	AT 2026-08-05	MOVEMENT
National data marketplace	Did not exist	Proposed state-run marketplace, more than 1,000 datasets over five years, KSh 396m to build and operate, overseen by a proposed national council	ADVANCED

The clearest band change in this report is here. Virtual assets went from no statute at all to an Act commenced in November 2025, gazetted regulations in July 2026 with capital set by licence class, a seizure and freezing framework, and a hard compliance deadline of 4 November 2026. Artificial intelligence went from one strategy to four instruments – a 226-page draft policy, a Senate bill on a separate track, draft regulator guidance reaching offshore processing through transfer rules, and a costed-but-unfunded strategy – and not one of them is binding.

Enforcement capacity became visible in the estimates for the first time: Data Protection Services received KSh 917.3m in the 2026/27 original estimates, where through 2025/26 the regulator had no separately visible line. What this base cannot yet show is what that capacity produced: the regulator's caseload bulletin and its statutory register of data handlers are both published and both unheld.

The Data Protection Act itself was not amended. What accumulated on top of it is enforcement episodes, litigation and third-party analysis: a constitutional petition decided in May 2026 awarding eleven petitioners KES 900,000 each for a sustained and systematic compromise of subscriber data, a 40-day registration ultimatum to 224 betting firms of which 15 were fully registered, and an investigation opened into three licensed operators. The one instrument that lost reach did so through the courts.

Artificial intelligence and the technology sector

AI

SYSTEM OR INSTRUMENT	AT 2025-08-01	AT 2026-08-05	MOVEMENT
ATLAS Umoja AI	Did not exist	Kenya one of five governments pooling datasets and research to scale an open-source African-language template	ADVANCED
Kenya AI and Other Emerging Technologies Policy 2026	None published, no national AI policy instrument	226-page draft out for consultation, with a risk-based lifecycle model, effects-based extraterritorial reach, binding AI-worker standards and a disclosure duty; high risk undefined and penalties unstated	ADVANCED
Kenya Artificial Intelligence Bill 2026	Did not exist	Before the Senate, a self-declared EU AI Act transplant with a presidentially appointed commissioner and fines capped at KES 5m	ADVANCED
Kenya-Germany applied AI centre	Did not exist	Centre of African Excellence for Applied AI proposed, still at preliminary-consultation stage with no formalised agreement	ADVANCED
Konza Digital Media City and AI data centre	Digital Media City financing agreement signed 2023, no AI data-centre element	Proposed Digital Media City plus an AI data centre at Konza, with a delegation expected August 2026	ADVANCED
National AI computing platform	None published	To be established at the Technopolis Development Authority with GPU infrastructure, serving researchers, universities and startups	ADVANCED

SYSTEM OR INSTRUMENT	AT 2025-08-01	AT 2026-08-05	MOVEMENT
National AI Strategy 2025-2030	In force, no implementation roadmap, costing or budget line held	Roadmap published with an 80% 5G population-coverage target by 2030, costed at KSh 152bn over five years with no dedicated allocation in the FY2026/27 budget	ADVANCED
Servernah Cloud	Did not exist	Marketed as Kenya's first sovereign-hosted cloud and AI platform, running AI workloads without sending data offshore	ADVANCED
Safaricom automated decisioning and Zuri	AI deployed in fraud detection and customer service, no challenge on file	Chatbot and automated M-PESA decisioning still operating; the petition alleges no guaranteed route to a human agent, no disclosure of decision logic and algorithmic discrimination in credit scoring	NO CHANGE, NOW UNDER CHALLENGE
Absa Kenya AI policy and Citrus agent	BASELINE NOT HELD	Bank adopted its own AI policy during 2025, with a proprietary AI agent piloting for deepfake detection at account opening	Baseline not held
Content-moderation and annotation redundancies	BASELINE NOT HELD	1,108 Kenyan jobs cut	Baseline not held

Innovation ecosystem

SYSTEM OR INSTRUMENT	AT 2025-08-01	AT 2026-08-05	MOVEMENT
Qubit Hub	Did not exist	African AI research and development lab to be hosted at iXAfrica NBOX1 on sovereign compute	ADVANCED
Startup funding raised	US\$1.04bn raised in 2025, first in Africa and up 72% year on year	US\$126m total and US\$46m equity in the first half of 2026, third in Africa and the weakest half since early 2021	REGRESSED
Vumah Labs	BASELINE NOT HELD	Two named products, one for detecting falsified content and verifying digital media and one for consent management	Baseline not held
Zerobionics	BASELINE NOT HELD	Kenyan-built humanoid robots rendering speech into sign language in real time, with recycled-plastic casing cutting costs by over 60% and delivery working over 2G	Baseline not held

US / hyperscaler activities

SYSTEM OR INSTRUMENT	AT 2025-08-01	AT 2026-08-05	MOVEMENT
OpenAI Academy Nairobi	Did not exist	Proposal for East Africa's first OpenAI Academy, unsigned	ADVANCED
Safaricom and AWS generative AI collaboration	Collaboration for fraud detection, customer-service automation and engineer upskilling	Unchanged, with no expansion, spend figure or workload detail published since	NO CHANGE

China activities

SYSTEM OR INSTRUMENT	AT 2025-08-01	AT 2026-08-05	MOVEMENT
Kenya-China e-commerce cooperation memorandum	BASELINE NOT HELD	Cited as the basis for a delegation to the Silk Road e-commerce matching activity, framed inside the Digital Master Plan	Baseline not held

India activities

SYSTEM OR INSTRUMENT	AT 2025-08-01	AT 2026-08-05	MOVEMENT
Kenya-India-Italy sovereign AI partnership	Did not exist	Targets 100 AI-deployment programmes by 2030 on multilingual low-bandwidth voice AI	ADVANCED

At the window's opening this section had infrastructure and no state instrument: a US\$1bn data-centre announcement already known to be slipping, one sovereign-cloud product, a cloud region that was a two-year-old announcement, and no Kenyan artificial-intelligence policy, bill, guidance or costing of any kind.

The regulatory layer filled in across the year, as set out above. The domestic sovereign-cloud layer also moved from a single vendor announcement to a working stack on one campus — a second platform launched in March 2026, a third in May, and a research lab announced the same month — while the cloud region selected its host but did not launch.

The patron layer accreted announcements without delivery. Four bilateral channels opened or were restated across the year, and none has a delivery, budget or date attached. Funding regressed sharply, from first in Africa on US\$1.04bn in 2025 to third on US\$126m in the first half of 2026. And the labour underside entered the record in both directions in the same year: 1,108 redundancies in April when a moderation contract ended, and a draft policy in July that would regulate that same workforce.

Inclusion and capacity

Digital divides

SYSTEM OR INSTRUMENT	AT 2025-08-01	AT 2026-08-05	MOVEMENT
KenSafeSpace	Running on a EUR 1.3m EU grant	Closed after 30 months, reporting 18,000 reached directly, 9.4m through campaigns and 133 defenders trained, with a 49-member coalition continuing unfunded	CLOSED
Smartphone against feature-phone connections	48.7m smartphone and 29.6m feature-phone connections, December 2025	50.2m smartphone connections, above 50m for the first time, with feature phones down to 28.5m	ADVANCED
Enhancing Digital Access and Community Resilience	GBP 2.3m committed, activities starting late 2025	GBP 2.3m across eight arid-lands counties including refugee-hosting Garissa and Turkana, with no completion report held	NO CHANGE
Universal Service Fund	20 sub-locations connected in FY2024/25 and 155 cumulatively, reaching about 508,012 people, with construction started at 32 of 47 planned centres of excellence	Unchanged; no FY2025/26 account published	NO CHANGE
EmpowerHer	BASELINE NOT HELD	Targets 15,000 women across three counties on a trainer-of-trainers model, with no value or reach-to-date disclosed	Baseline not held

Access to services

SYSTEM OR INSTRUMENT	AT 2025-08-01	AT 2026-08-05	MOVEMENT
Starlink school connectivity with GrowX and CEMASTE A	Did not exist	30 schools across 30 districts reaching more than 32,000 students and about 1,000 teachers, with financial terms undisclosed	ADVANCED
EU Last Mile Connectivity of Schools	EUR 9.8m committed	Commitment unchanged, with no outturn published	NO CHANGE
EU-UNICEF school connectivity	EUR 9.8m committed to connect 1,000 schools	Commitment unchanged, with no disbursement or schools-connected update published	NO CHANGE
UK Digital Access Programme, Kenya	GBP 4.77m committed	Commitment unchanged, with no outturn published	NO CHANGE
Adult formal financial inclusion	BASELINE NOT HELD	83.7% of adults, against 26.7% in 2006	Baseline not held
Fuliza overdraft disbursement	BASELINE NOT HELD	Record KSh 1.4tn disbursed, with the repayment-to-disbursement ratio flat year on year	Baseline not held
Hustler Fund	BASELINE NOT HELD	KSh 83bn disbursed against KSh 71bn recovered, with state funding down from KSh 20bn at launch to KSh 300m in the year to June 2026	Baseline not held
Hustler Fund default rate	BASELINE NOT HELD	15% default, about KSh 12.5bn; the Auditor-General found 104,631 loans worth KSh 116.5m issued to borrowers with no identity details on file	Baseline not held

Literacy

SYSTEM OR INSTRUMENT	AT 2025-08-01	AT 2026-08-05	MOVEMENT
Digital Literacy Programme	1,170,846 digital devices installed in 22,891 public primary schools and 216 schools connected to the internet, on the 2022 review's milestone table	Unchanged; no device, school or learning-outcome figure published since 2022	NO CHANGE
Regulator school computer donations	BASELINE NOT HELD	23 educational institutions supported recently, with no quantity, value or connectivity provision disclosed	Baseline not held
Safaricom Hook Circle	BASELINE NOT HELD	Over one million young people reached across six counties	Baseline not held

Training and skills

SYSTEM OR INSTRUMENT	AT 2025-08-01	AT 2026-08-05	MOVEMENT
HerSpace	Did not exist	Training 150 justice-sector officials on digital evidence, with no value disclosed	ADVANCED
Mastercard Foundation EdTech Fellowship	Eight-month cohorts for growth-stage companies	Cohort 4 runs 18 months for early-stage companies, offering each up to US\$100,000 in equity-free funding and scoped to learners with disabilities, refugee and rural communities, and girls and young women; 36 Kenyan companies since the 2023 launch, on iHUB's figures	ADVANCED
EU digitalisation of technical and vocational education	EUR 9.9m committed	Commitment unchanged, with no outturn published	NO CHANGE
KfW digitalisation of vocational training	EUR 18m concessional loan committed	Commitment unchanged, with no disbursement published	NO CHANGE
KfW promotion of vocational training in ICT	EUR 5m concessional loan	Commitment unchanged, with the scheduled end year reached and no closure statement held	NO CHANGE

SYSTEM OR INSTRUMENT	AT 2025-08-01	AT 2026-08-05	MOVEMENT
Jitume Digital Enablement Programme	BASELINE NOT HELD	117 hubs commissioned on the ceremony series and about 350 on the installed-base series	<i>Baseline not held</i>
Jitume training throughput	BASELINE NOT HELD	More than 140,000 young people trained and more than 41,000 linked to economic opportunity since 2023	<i>Baseline not held</i>

One programme closed and one opened. The digital-rights coalition ended in July 2026 after 30 months; a successor training programme began the same day. An arid-lands access programme passed its scheduled March 2026 completion with no completion report on file.

Six donor instruments held position all year at their original commitment values because the base holds commitments and no disbursement for any of them. That is not a finding about the programmes; it is a finding about what is published.

The measured positions moved modestly and in one direction. Smartphone connections passed 50 million in March 2026 from 48.7 million in December 2025, with feature phones falling to 28.5 million. The flagship lending fund's repayment is now accepted in a privately issued loyalty currency at a rate the issuer sets.

Finance

New investments

SYSTEM OR INSTRUMENT	AT 2025-08-01	AT 2026-08-05	MOVEMENT
Kenya Digital Economy Acceleration Project	KSh 3.7bn in the FY2025/26 estimates on a US\$390m commitment	KSh 4.3bn appropriated for FY2026/27, half the entire digital thematic, equipping more than 10,000 junior secondary schools	ADVANCED
Kenya Digital Economy Acceleration Project disbursement	BASELINE NOT HELD	US\$33.93m disbursed of US\$390m committed, in year three of an operation closing October 2028	<i>Baseline not held</i>

MoUs and other agreements

SYSTEM OR INSTRUMENT	AT 2025-08-01	AT 2026-08-05	MOVEMENT
EU-Kenya Digital Partnership	BASELINE NOT HELD	KSh 15.3bn committed, including EUR 37m to the Blue Raman submarine cable	<i>Baseline not held</i>

Domestic budget appropriations and expenditure

SYSTEM OR INSTRUMENT	AT 2025-08-01	AT 2026-08-05	MOVEMENT
Digital economy and creative industry thematic allocation	KSh 12.7bn for FY2025/26	KSh 8.6bn for FY2026/27, a second consecutive cut from KSh 16.3bn in FY2024/25	REGRESSED
Vote 1122, State Department for ICT and the Digital Economy	KSh 16,188.8m appropriated for FY2025/26	KSh 12,763.8m appropriated for FY2026/27, with FY2025/26 itself revised down to KSh 12,215.1m at the first supplementary	REGRESSED
Digital hubs establishment appropriation	BASELINE NOT HELD	KSh 400m appropriated for establishing digital hubs	<i>Baseline not held</i>
FY2027/28 budget process	BASELINE NOT HELD	Digital Superhighway named a priority sector, with no ceiling, figure or timetable published	<i>Baseline not held</i>

SYSTEM OR INSTRUMENT	AT 2025-08-01	AT 2026-08-05	MOVEMENT
Last-mile county connectivity maintenance appropriation	BASELINE NOT HELD	KSh 528m appropriated for maintenance and rehabilitation	Baseline not held

State financing fell while the externally financed share rose. The digital thematic allocation went KSh 16.3bn, KSh 12.7bn, KSh 8.6bn across three years, and the World Bank acceleration project rose to KSh 4.3bn — half the entire thematic — having disbursed US\$33.93m of a US\$390m commitment by June 2026. The department's own vote fell from KSh 16,188.8m appropriated for 2025/26 to KSh 12,763.8m for 2026/27, with the intervening year revised down to KSh 12,215.1m.

State funding for the flagship lending fund fell from KSh 20bn at launch to KSh 300m in the year to June 2026.

Where the record is thin

SYSTEM OR INSTRUMENT	WHAT WOULD SETTLE IT	LAST PROBED
CA spectrum-interference audit, direct-to-cell	a published CA determination or gazette notice would settle it; probed 2026-08-05, no CA determination or gazette notice on interference published; trade reporting only	2026-08-05
Data-centre power tariff or grid-connection framework	a published EPRA or Kenya Power data-centre tariff, or a gazetted large-load connection rule, would settle it; probed 2026-08-05, EPRA tariffs and open-access regulations carry no data-centre category and no large-load connection rule	2026-08-05
National earth-observation data programme	a Kenya Space Agency strategy or national earth-observation data policy would settle it; every satellite-data source the place holds is continental or vendor-side; probed 2026-08-05, KSA Strategic Plan 2023-2027 located; the EO Data Sharing Framework 2026 itself is a landing page only	2026-08-05
Registered data controllers and processors	the ODPC register or its annual report would settle it; probed 2026-08-05, the statutory register is public and live; a total needs pagination traversal, not a single fetch	2026-08-05
Installed AI compute capacity	no held source states Kenya's installed GPU or accelerator capacity; a ministry or regulator inventory would settle it; probed 2026-08-05, no ministry or regulator inventory exists; the nearest official statement is a Konza transaction document giving 0.7MW IT capacity, 144 racks and no dedicated GPU clusters; on ingest the Konza transaction document proved to be dated 2026-04-13, not 2020, so its 0.7MW / 144-rack / no-GPU-cluster statement is current rather than historical	2026-08-05
Ajira Digital Programme	the state's other flagship digital-work programme is effectively absent from the base; probed 2026-08-05, no official programme report retrievable and ajiradigital.go.ke renders only a broken interface; an SSRN case study is the only first-hand document reached	2026-08-05

Nothing in the gaps table moved during the period, which is itself the point: a universal service fund with no levy rate or accounts on file, a digital literacy programme with no device or school count, and a regulator's enforcement record that has never been published are absences of the same age as the window. They are the first briefs for the country-deep sweep.

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